

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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ESTEBAN BARBER

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE
ERIN BARNES, SHIELD #03059, INDIVIDUALLY
AND AS A POLICE OFFICER, DETECTIVE
MATTHEW SGAMBATTI, SHIELD #4473,
INDIVIDUALLY AND AS A POLICE OFFICER
Defendants,

-----X

**AMENDED
SUMMONS WITH AMENDED
VERIFIED COMPLAINT**
INDEX NO. 161727/2015

Plaintiff designates New York
County as the place of trial.
The basis of the venue is place
where the cause of action arose

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons, exclusive of the day of service, (30) days after the service is complete, if the summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
This 30 day of August, 2016


EMDIN & RUSSELL, LLP.
Jeffrey L. Emdin, Esq., as Counsel
Attorneys for Plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

Defendants address:

City of New York
c/o Corporation Counsel,
City of New York
100 Church Street
New York, New York 10007

Det. Erin Barnes
Shield No. 03059
1 Police Plaza
New York, NY 10007

Det. Matthew Sgambatti
Shield No. 4473
1 Police Plaza
New York, NY 10007

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The plaintiff, Esteban Barber, as and for a Amended Verified Complaint filed by his attorneys, Emdin & Russell, LLP complaining of the defendants, respectfully shows to this court and alleges:

1. Upon information and belief that at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "City", was, and still is, a municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York.

2. Upon information and belief at all times hereinafter mentioned, the defendant, the City of New York, hereinafter certified to as "City", its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, hereinafter referred to as "NYPD", including all the police officers therein.

3. Upon information and belief, at all times hereinafter mentioned, and on the 19th

day of May, 2015, Detective. Erin Barnes, hereinafter referred to as “Barnes”, was employed as a Police Officer by the “City” and/or “NYPD”, and at all relevant times set forth below acted in the capacity of police officer(s) and employee(s) of the City of New York.

4. Upon information and belief, at all times hereinafter mentioned, and on the 19th day of May, 2015, Detective. Matthew Sgambatti, hereinafter referred to as “Sgambatti”, was employed as a Police Officer by the “City” and/or “NYPD”, and at all relevant times set forth below acted in the capacity of police officer(s) and employee(s) of the City of New York.

5. At all relevant times herein, the plaintiff is and was a resident of New York County.

6. The plaintiff is a political activist and a member of the CopWatch Patrol Unit, an organization that patrols New York City Boroughs and records instances of police activity including police misconduct.

7. Upon information and belief, at all times hereinafter mentioned, on the 19th day of May, 2015 at approximately 9:15 p.m. the plaintiff was in the vicinity of 116th Street between 2nd and 3rd Avenues in New York County, i.e. hereinafter referred to as the “location”.

8. At that time and place, the plaintiff was wearing his CopWatch uniform, and was videotaping the activity of police officers arresting an unknown individual.

9. As the plaintiff was videotaping members of the New York City Police Department placing the individual in a police vehicle, a Police Officer, upon information and belief Barnes or Sgambatti, intentionally and purposely struck the plaintiff in the chest, knocking the plaintiff backwards and causing his phone to fall to the ground.

10. Plaintiff was in immediate pain and went directly to Mt Sinai Hospital for treatment.

11. The incident occurred within the confines of the 23/25th pcts.
12. The plaintiff had lodged between 5-6 prior complaints about police misconduct within the aforementioned precincts prior to May 19, 2015, and upon information and belief both he and the CopWatch Patrol Unit were known to the New York City Police Department.
13. Detective Barnes and Sgambatti were identified by the Civilian Complaint Review Board as being present at said location.
14. Plaintiff was not charged with a crime and did not interfere in any way or manner with the arrest process of the other individual.
15. Upon intention and belief numerous other unknown police officers were present and did nothing to stop the officer from interfering with the plaintiff's right to record. Nor did they stop or report the fact that the plaintiff was violently struck in the chest by a New York City Police Officer.
16. Upon information and belief, the actions of Barnes, Sgambatti and other officers present, was done in response to the plaintiff recording the police encounter, and/or his affiliation with the CopWatch Patrol Unit.
17. Upon intention and belief numerous anonymous officers have made disparaging comments about the CopWatch Patrol Unit, CopWatch Patrol Unit members, and/or the plaintiff in a forum called "The Rant"
18. "The Rant" advertises itself as a forum for New York City Cops speaking their minds. The site states "We have the right to Rant".
19. Upon information and belief users can post on "The Rant" anonymously only if they have a valid NYPD ID.
20. Upon information and belief the NYPD, at all relevant times herein, knew of

“The Rant”, monitored the content of “The Rant”, and failed to take any action with respect to officers who posted comments within “The Rant”, even when the comments called into question the officers integrity, professionalism, bias and fitness.

21. On October 27, 2014 “realscu” posted in “The Rant” that “these two (the plaintiff and Jose LaSalle, another member of the CopWatch Patrol Unit) need a good slap to the face: They hang out in front of the 46 like they own it”.

22. That same day “Keystone Cop” posted “Get a fucking life. Freaking Loser”. And “Thisroundsonme” posted “I just got a nice old school, maple, Mickey Mantle Little League bat from an apartment I had to clean out. It would be perfect for a little “attitude adjustment” for these two.

23. Later that same day “Officer JoeBolton” posted “Take that video camera and shove it up his fanny perpendicular”.

24. “HUD” contributed to “Thee Rant” on October 28, 2014 stating “These guys can film all they want, and none of us should give them the satisfaction of rising to their bait, or worse, walking away from someone stopped because these guys are 84. If they get within a position where they could reach my firearm, they get pushed back firmly and told they are too close. When they protest and ask why, they get ignored, until they get too close again, when they get collared for OGA, which will, of course get DP’d and give the bosses a case of the trots. Tough Shyte. The job refuses to take leadership on this issue, then we have to”.

25. On October 30, 2014, upon information and belief again referring to the plaintiff and the CopWatchPatrol Unit, “CaptSquareBag” wrote “Or get a retired guy to go down there and tune them silly”. “Thisroundsonme” and “Keystone Kop” offered to assist CaptSquareBag.

26. That notice of the plaintiff's claim and notice of intention to sue for damages as

well as a Supplemental Notice of Claim which set forth the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose were duly served upon the comptroller of the defendant "City" and the Corporation Counsel of the City of New York.

27. That a 50(h) hearing was held.

28. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

29. That this action is commenced within one year and 90 days after the cause of action arose.

30. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

**AS AND FOR A FIRST CAUSE OF
ACTION FOR ASSAULT AND BATTERY
AGAINST ALL NAMED DEFENDANTS**

31. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "30" with the same force and effect as if more fully and at length set forth herein.

32. That plaintiff was, without provocation and while not offering any resistance, was struck with such force in the chest that he was injured and knocked backwards by, upon information and belief, Barnes or Sgambatti, while they were acting within the scope of their employment and performing of their duties as police officers.

33. That all said contact was committed without plaintiff's permission or consent.

34. That all said contact was unlawful, excessive and without privilege.

35. That all contact committed by defendants through their agents, servants, and/or employees, including the above named defendants, was offensive to the plaintiff and caused him to fear further contact and imminent harm, and caused plaintiff to sustain physical and/or psychological injury.

36. That the above acts committed by the defendants constituted an assault and/or battery of the plaintiff.

37. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A SECOND CAUSE OF
ACTION FOR NEGLIGENCE AGAINST
ALL NAMED DEFENDANTS

38. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "37" with the same force and effect as if more fully and at length set forth herein.

39. That the defendant, "City" was careless and/or negligent in hiring, retaining, training, assigning, failing to retrain, in monitoring, supervising, investigating, disciplining and/or promoting as and for its employees, defendants "Barnes" and/or "Sgambatti", in that said employee(s) lacked the experience, deportment and ability to be employed by the defendant "City" in the capacity in which he was utilized, i.e. as police officers; in that the defendant, "City" failed to exercise due care and caution in its hiring and promoting practices; in that the defendant "City" failed to investigate the above named employee's backgrounds; in that the "City" failed to properly train, supervise and monitor the 'officers; and in that that the defendant "City" was negligent in disciplining, retraining and retaining the named defendant officers;' and

in that the defendants, their agents, servants and employees, were otherwise careless, negligent and reckless.

40. That upon information and belief the City by and through its agents had received numerous civilian complaints and/or lawsuits, against defendants "Barnes" and "Sgambatti" prior to the assault and battery of plaintiff as set forth herein.

41. That upon information and belief the City by and through its agents had known of threats made against the plaintiff and his organization and did little if nothing to stop, punish, correct and/or warn officers who engaged in said conduct and educate officers on citizens rights to videotape, all prior to the assault and battery of plaintiff as set forth herein.

42. That the City failed to properly retrain said officers, negligently continued to employ said officers despite evidence of their police misconduct and unlawful intent without proper supervision, training and discipline.

43. That Barnes and Sgambatti while acting within the scope of his employment, was negligent in that he failed to use such care in the performance of his police duties as a reasonably prudent and careful police officer would have used under similar circumstances; in that each was negligent, careless and reckless in the manner in which they investigated and/or performed his police dates; in that they failed to intervene or mitigate police misconduct; in that the police department permitted or condoned the harassment and retribution against individuals who videotape police actions and in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.

44. That the aforesaid occurrence, to wit: assault and battery and excessive use of and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendants, its agents, servants and/or employees including defendant

“Barnes” without any negligence on the part of the plaintiff contributing thereto.

45. That by reason of the aforesaid, the plaintiff, was injured and stressed, and he was thereby damaged.

46. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS AND FOR A THIRD CAUSE OF ACTION:
FOR VIOLATION OF PERSONAL CONSTITUTIONAL RIGHTS UNDER
42 U.S.C. 1983 AGAINST THE CITY OF NEW YORK

47. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "46" with the same force and effect as if more fully and at length set forth herein.

48. That on or about the 19th day of May, 2015 at or about approximately 9:15 p.m. at the “location” “Barnes” and “Sgambatti” and other officers were present thereat as part of their regular and official employment as police officers for the defendant, “City”

49. Plaintiff was lawfully and properly thereat, when “Barnes” and “Sgambatti” acting as agents, servant and/or employee of the defendant “City”, forcibly pushed the claimant in the chest absent just cause, provocation or reason. The plaintiff had not engaged in any criminal conduct or suspicious activity. Upon information and belief Barnes, Sgambatti and other officers present acted with malice and/or intent due to the plaintiff’s affiliation with the CopWatch Organization and the fact that he was recording their activities.

50. That all acts committed by Barnes, Sgambatti, and other agents servants, employees and/or agents of the defendant “City” were committed within the scope of their employment and under color of law.

51. Upon information and belief members of CopWatch Organization have been targeted for arrest, abuse, intimidation by members of the New York City Police Department, and said acts and actions were known to the City Of New York and the supervisors at the New York City Police Department, who acted with deliberate indifference and did nothing address the situation, punish the offending officers and insure that the conduct ceased and desisted.

52. That said acts constituted an assault and battery and a 4th and 1st Amendment violation of the plaintiff and deprived plaintiff of his rights and liberties as set forth in the Constitutions of the United States and of the State of New York and under 42 U.S.C. Section 1983.

53. That by reason of the aforesaid, the plaintiff was assaulted, battered and intimidated and he was damaged.

54. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections, 1983, 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A FOURTH CAUSE OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1983, DET. BARNES, AND DET. SGAMBATTI IN THEIR
INDIVIDUAL CAPACITIES AND AS AGENTS OF THE CITY OF NEW YORK, THE
PLAINTIFF ALLEGES:

55. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "54" with the same force and effect as if more fully and at length set forth herein.

56. That at all times hereinafter mentioned, the defendants "Barnes" and "Sgambatti"

were employed by the defendant The City of New York and/or The New York City Police Department and were acting under the color of their official capacities and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

57. That at all times hereinafter mentioned “Barnes” and “Sgambatti” were acting pursuant to orders and directives from defendant, The City of New York.

58. That during all times hereinafter mentioned, the defendants “Barnes” and “Sgambatti”, individually, and/or collectively with other unknown officers acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth this complaint to the injury of the plaintiff, and deprived him of the rights, privileges and immunities secured to him by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.

59. That the unlawful and illegal conduct of defendants “officers” deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

a) The right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,

b) The right not to be discriminated against based upon the plaintiff’s race, creed, sex, or sexual orientation.

c) The right to assemble and associate

d) The right to equal protection under the law.

60. That by reason of the aforesaid violations, use of force, seizure of plaintiff's person, assault and battery, and threats Barnes and Sgambatti violated plaintiff's rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, "the officers" and violated 42 U.S.C. §1983.

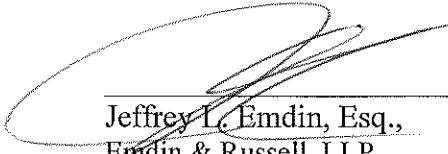
61. That as a direct proximate result of "the officers" actions plaintiff was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.

62. That by reason of the aforesaid, plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.

63. That by reason of the aforesaid, the plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Section 1988, and such other relief as to the court may seem just and proper.

WHEREFORE, THE PLAINTIFF SEEKS JUDGMENT on the First through Fourth causes of action for compensatory damages, legal fees, expert fees, costs, disbursements, punitive damages on the Third and Fourth causes of action, and such other and further relief as to the court seems just and proper.

DATED: New York, New York
August 23, 2016



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